

HOUSE No. 1707

The Commonwealth of Massachusetts

PRESENTED BY:

William C. Galvin

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to the reckless evasion of a police officer.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>William C. Galvin</i>	<i>6th Norfolk</i>	<i>1/13/2025</i>

HOUSE No. 1707

By Representative Galvin of Canton, a petition (accompanied by bill, House, No. 1707) of William C. Galvin relative to the reckless evasion of police officers. The Judiciary.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 1503 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to the reckless evasion of a police officer.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 90 of the General Laws, as appearing in the 2016 Official Edition, is hereby
2 amended by inserting after section 25 the following section:-

3 Section 25A. Any person who flees or attempts to elude a police officer while operating a
4 motor vehicle willfully or with a wanton disregard for the safety of persons or property, shall be
5 punished by a fine of not less than one hundred dollars and not more than one thousand dollars or
6 by imprisonment for not less than six months and not more than two years, or both. A conviction
7 under this provision shall result in a driver's license suspension by the registry of motor vehicles
8 for 60 days. For the purposes of this section, willful or wanton disregard for the safety of persons
9 or property includes, but is not limited to, driving while fleeing or attempting to elude a pursuing

- 10 police officer during which time the driver causes property damage or makes three or more
- 11 moving violations.